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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2215/19 - 2021 පෙබරවාරි මස 16 වැනි අඟහරුවාදා - 2021.02.16
No. 2215/19 - TUESDAY, FEBRUARY 16, 2021

(Published by Authority)

PART I : SECTION (I) — GENERAL

Government Notifications

L. D. B. 6/2017

CIVIL AVIATION ACT, No. 14 OF 2010

REGULATIONS made by the Minister of Tourism under Section 117 of the Civil Aviation Act, No. 14 of 2010 read with Section 78 of the aforesaid Act.

PRASANNA RANATUNGA,
Minister of Tourism.

Colombo,
February 05, 2021.

REGULATIONS

1. These regulations may be cited as Safe Handling and Transporting of Dangerous Goods by Air Regulations, No. 1 of 2020.

2. These regulations shall apply for classification, packing, labelling and marking, handling and carriage of dangerous goods by air within the territory of Sri Lanka in respect of the following entities:-



- (a) Shippers of dangerous goods including packers and persons or organisations undertaking the responsibilities of a shipper;
- (b) Operators;
- (c) Ground handling agencies which perform, on behalf of the operator, the act of accepting, handling, loading, unloading, transferring or other processing of cargo or mail;
- (d) Ground handling agencies located at an airport which perform, on behalf of the operator, the act of processing passengers;
- (e) Agencies not located at an airport which perform, on behalf of the operator, the act of checking in passengers;
- (f) Freight forwarders;
- (g) Agencies engaged in the security screening of passengers and crew and their baggage, cargo or mail; and
- (h) Designated postal operators.

3. The Director-General may issue directives, implementing standards and implementing instructions as may be required, from time to time, to give effect to the SARPS relating to classifications, packing, labelling and marking, handling and carriage of dangerous goods by air.

4. Unless under the authority of a valid permit issued by the Director- General for the handling and transporting of respective dangerous goods, a person or organization shall not handle or transport dangerous goods by air either within the Sri Lankan airspace or in the airspace delegated to Sri Lanka by International Civil Aviation Organization, except on the following grounds:-

- (a) when safety cartridges are carried as cargo in an aircraft carrying passengers or goods for hire or reward and such cartridges are packed in substantial tinlined wooden cases in such a manner as to ensure that there is no undue movement within the package;
- (b) any article or equipment of the aircraft or any article required for the purpose of the operation, navigation or safety or well-being of any person on board, so long as, in case of an aircraft registered in Sri Lanka, fuel and oil are carried in the fuel and oil tanks of such air craft or in special stowage approved in writing for the purpose by or under the authority of the Director-General and articles of an inflammable nature required in connection with the navigation or safety of the aircraft are of a type approved in writing by or under the authority of the Director- General; and
- (c) when an exemption has been granted by the Director General in case of an extreme urgency or when other forms of transport are inappropriate or if full compliance with the prescribed requirements is contrary to the public interest.

5. (1) Any person who seeks to obtain a permit for handling and transporting of dangerous goods by air shall -

- (a) submit to the Director-General a letter of intent prior to submission of an application to obtain a permit;
- (b) comply with the general requirements and the terms and conditions specified in these regulations and the specific requirements contained in the relevant directives, implementing standards, implementing instructions and SLCAP 4400- Manual on Transport of Dangerous Goods (hereinafter referred to as "SLCAP 4400");

- (c) submit an application substantially in the form set out in schedule 1 hereto supported by a “Declaration of Conformance” which indicates the degree of the applicant’s compliance with regulatory requirement pertaining to carriage of dangerous goods by air;
 - (d) submit of all required documentary proof as set out in SLCAP 4400 along with the application; and
 - (e) pay the applicable fee as specified in the Civil Aviation Authority Fees and Charges Regulations No.1 of 2014 published in the Gazette Extraordinary No.1869/32 dated July 02, 2014 (hereinafter referred to as the “Fees and Charges Regulation”).
- (2) The Director-General may, subject to the provisions of section 78 of the Civil Aviation Act, No. 14 of 2010 and these Regulations and upon being satisfied of the fulfillment by the applicant of the requirements specified in sub-regulation (1), issue to the applicant a permit for handling and transporting of dangerous goods by air.
- (3) The permit issued under sub-regulation (2) shall be substantially in the form set out in Schedule II hereto.
- (4) The permit shall be valid for one year from the date of issue until or unless suspended, cancelled or revoked by the Director General under sub-regulation (5):
- Provided that, the validity of the permit shall cease with immediate effect if anything is done in contravention of sub-regulation (6).
- (5) The Director General may suspend, cancel or revoke the permit if there are reasonable grounds to believe that-
- (a) the requirements specified in regulation 5 have been breached; or
 - (b) the specified standards with regard to the safety, efficiency or regularity of dangerous goods authorised under the permit are not adequately maintained; or
 - (c) the validity period of the training certificate of the dangerous goods coordinator is expired.
- (6) The permit issued under these regulations shall not be transferable and every permit holder shall notify the Director-General and obtain his approval in writing for the following
- (a) change of the permit holder;
 - (b) change of business name of the permit holder;
 - (c) change of nature or approved category of dangerous goods;
 - (d) change of dangerous goods coordinator of the permit holder; and
 - (e) change of any other facility, equipment or procedure which has been approved by the Director-General.
- (7) Any permit holder who wishes to renew such permit shall submit an application substantially in the form set out in Schedule III along with all required documentary proof as set out in SLCAP 4400 and the fee as specified in the Fees and Charges Regulation.
- (8) The requirements specified in regulation 5 or any privilege granted to the permit holder under such permit may be amended, from time to time, if the Director-General considers it expedient in the interest of safety, regularity or efficiency of the services being provided by the permit holder or in the interest of national defence.

6. Every applicant or permit holder shall -

- (a) provide to the Authority, the use and guidance of personnel employed by him, a Dangerous Goods Manual or an Operations Manual-
 - (i) which shall contain complete instructions as to the provision of the relevant dangerous goods, including the responsibilities of the personnel employed, requirements to be satisfied for classifications, packing, labelling, marking, handling and carriage of dangerous goods by air;
 - (ii) which shall, other than foreign airlines, be subject to the approval of the Director-General;
 - (iii) which may be amended or revised, where necessary, subject to the approval of the Director-General for such amendments, to ensure that the instructions contained in such manuals are up to date and accurate; and
 - (iv) which shall be fully complied with by personnel employed by the permit holder unless it is proved that the deviation from the instructions specified therein provides enhanced level of aviation safety;
- (b) establish and maintain an effective Safety Management System acceptable to the Director-General in compliance with the *Gazette Extraordinary* No. 2065/38 of April 05, 2018 and Implementing Standards No. 70 on Framework for a Safety Management System;
- (c) maintain an effective contingency plan and an emergency response plan acceptable to the Director-General that will adequately address any potential contingency or emergency situation arising out of the services authorised under the permit;
- (d) furnish to the Director-General, such statistical returns, data or other information relating to handling and transporting of dangerous goods by air under the permit as the Director-General may direct, from time to time;
- (e) provide the services authorised under the permit, efficiently in accordance with the applicable standards set out in these regulations;
- (f) notify to the Director-General, any service difficulty that may arise during service delivery; and
- (g) ensure that an effective system for accident and incident reporting is in place in respect of the services authorised under the permit aiming the prompt notification of the relevant details to the appropriate authority as set out in SLCAP 4400.

7. Regulations 128 and 129 of the Ceylon Air Navigation Regulations, 1955, published in Gazette Extraordinary No. 10812 of July 01, 1955 are hereby rescinded without prejudice to anything previously done thereunder.

8. For the purpose of these regulations -

- “Authority” means the Civil Aviation Authority of Sri Lanka established by the Civil Aviation Authority of Sri Lanka Act, No. 34 of 2002;
- “dangerous goods” shall have the same meaning assigned to it by the Civil Aviation Act, No. 14 of 2010;
- “Director-General” means the Director-General of Civil Aviation appointed under section 11 of the Civil Aviation Authority of Sri Lanka Act, No. 34 of 2002;
- “Operator” shall have the same meaning assigned to it by the Civil Aviation Act, No. 14 of 2010;
- “SARPS” shall have the same meaning assigned to it by the Civil Aviation Act, No. 14 of 2010;
- “SLCAP 4400” means the Manual on Transport of Dangerous Goods issued by the Civil Aviation Authority of Sri Lanka; and
- “territory of Sri Lanka” shall have the same meaning assigned to it by the Civil Aviation Act, No. 14 of 2010.

SCHEDULE 1

[Regulation 5(1) (c)]

**APPLICATION FOR OBTAINING THE PERMIT
FOR HANDLING AND TRANSPORTING OF DANGEROUS GOODS BY AIR**

1. Full Name of the Application :-

2. Name of the Chief Executive Officer

/ Accountable Person :-

3. Address :-
.....

4. Entity * :-

a	b	c	d	e	f	g	h
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5. Nominee for the post of Dangerous Goods Co-ordinator (DGC)

(person with overall responsibility for handling and transporting of dangerous goods by air)

(i) Full Name :-

(ii) Qualifications :-

(iii) Experience :-

(iv) Contact Details :-

(a) Address :-

(b) Telephone No. :

(c) E-mail Address :

(d) Fax :-

6. Has the Applicant prepared a Dangerous Goods Manual an Operations Manual?
(Attach two copies of the Manual)

7. Has the Applicant's nominee for the post of DGC undergone a CAT 6 and whether other applicants have the relevant DGC CAT training?
(Attach a copy of the Certificate of Training)

8. Has the Applicant prepared a training programme for his staff?
(Attach a copy of the training programme)

9. If the Applicant has not prepared the training programme, specify as to how the Applicant intends to train his staff in respect of handling and transportation of dangerous goods.

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PART I : SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 16.02.2021

10. Types/ nature of dangerous goods, the Applicant intends to handle and transport:-

11. Destinations where the Operator intends to transport dangerous goods: -
(Only for Operator)

.....
Signature of the Chief Executive Officer

Name :-

Official Stamp :-

Date :-

* Entity as per regulation 2 of Safe Handling and Transporting of Dangerous Goods by Air Regulations, No. 1 of 2020.

SCHEDULE II

[Regulation 5(3)]

SAMPLE DANGEROUS GOODS PERMIT ISSUED BY THE DIRECTOR-GENERAL OF CIVIL AVIATION FOR HANDLING AND TRANSPORTING OF DANGEROUS GOODS

Permit No. OP/14/X/X

Democratic Socialist Republic of Sri Lanka



Civil Aviation Authority of Sri Lanka

PERMIT FOR HANDLING AND TRANSPORTING OF DANGEROUS GOODS BY AIR

By virtue of the powers vested in me by Regulation 5 of Safe Handling and Transporting of Dangerous Goods by Air Regulations No. 01 of 2020, I, the Director General of Civil Aviation, being complied with the applicable requirements stipulated in the aforementioned Regulation and implementing standards, directives, implementing instructions and procedures issued from time to time by the Director General of Civil Aviation concerning the handling and transporting of dangerous goods by air hereby authorise (name of holder and entity), to handle and transport dangerous goods by air within the territory of Sri Lanka.

This permit remains valid until (Date) unless sooner suspended, cancelled or revoked. (The validity of this permit depends on the permit holder's continued compliance with the initial certification requirements.)

.....
Director General of Civil Aviation
& Chief Executive Officer.

Civil Aviation Authority of Sri Lanka,
No. 152/1 (Opposite Radar Tower),
Minuwangoda Road,
Katunayake.

Date of Initial Issue :

SCHEDULE III

[Regulation 5 (7)]

APPLICATION FOR RENEWAL OF PERMIT FOR HANDLING AND TRANSPORTING OF DANGEROUS GOODS BY AIR

1. Name of the Applicant :-

2. Name of the Chief Executive Officer

/ Accountable Person :-

3. Address :-
.....

4. Entity * :-

a	b	c	d	e	f	g	h
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5. Appointed Dangerous Goods Co-ordinator (DGC)
(person with overall responsibility for handling and transporting of dangerous goods by air)

(i) Full Name :-

(ii) Contact Details :-

(a) Address :-

(b) Telephone No. :

(c) E-mail Address :

(d) Fax :-

6. Types/nature of dangerous goods, the Applicant intends to handle and transport:-

7. Destinations where the Operator intends to transport dangerous goods:-
(Only for Operator)

8. Statement of the Dangerous Goods Co-ordinator:-
I certify that the findings of the last inspection report were rectified,
(please enclose proof to support the above statement if applicable.)

.....
Signature of the Dangerous Goods Co-ordinator

Name:-

Official Stamp:-

* Entity as per regulation 2 of Safe Handling and Transporting of Dangerous Goods by Air Regulations, No. 1 of 2020.